

STATE OF NEW YORK

4544--A

2025-2026 Regular Sessions

IN SENATE

February 6, 2025

Introduced by Sens. HOYLMAN-SIGAL, ADDABBO, BAILEY, CLEARE, COMRIE, GIANARIS, GOUNARDES, JACKSON, MARTINEZ, MAYER, C. RYAN, SALAZAR, SKOUFIS, STAVISKY -- read twice and ordered printed, and when printed to be committed to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to enacting the "Jack Reid Law: Protect All Students Act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Short title. This act shall be known and may be cited as the "Jack Reid Law: Protect All Students Act".

§ 2. The education law is amended by adding a new article 2-A to read as follows:

ARTICLE 2-A

JACK REID LAW: PROTECT ALL STUDENTS ACT

Section 19. Legislative intent.

20. Definitions.

21. Bullying and harassment prohibited.

22. Severability and construction.

§ 19. Legislative intent. The legislature finds that students' ability to learn and to meet high academic standards, and a school's ability to educate its students, are compromised by incidents of harassment including bullying, taunting or intimidation. It is hereby declared to be the policy of the state to afford all students in nonpublic schools an environment free of bullying and harassment. The purpose of this article is to foster civility in nonpublic schools and to prevent and prohibit conduct which is inconsistent with a school's educational mission.

§ 20. Definitions. For the purposes of this article, the following terms shall have the following meanings:

1. "School property" shall mean in or within any building, structure, athletic playing field, playground, parking lot, or land contained within the real property boundary line of a nonpublic elementary or second-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

LBD07739-03-5

1 ary school; or in or on a school bus, as defined in section one hundred
2 forty-two of the vehicle and traffic law.

3 2. "School function" shall mean a nonpublic school-sponsored extra-
4 curricular event or activity.

5 3. "Harassment" and "bullying" shall mean the creation of a hostile
6 environment by conduct or by threats, intimidation or abuse, including
7 cyberbullying, that (a) has or would have the effect of unreasonably and
8 substantially interfering with a student's educational performance,
9 opportunities or benefits, or mental, emotional or physical well-being;
10 (b) reasonably causes or would reasonably be expected to cause a student
11 to fear for their physical safety; (c) reasonably causes or would
12 reasonably be expected to cause physical injury or emotional harm to a
13 student; or (d) occurs off school property and creates, or would fore-
14 seeably create, a risk of substantial disruption within the school envi-
15 ronment, where it is foreseeable that the conduct, threats, intimidation
16 or abuse might reach school property. For purposes of this definition,
17 the term "threats, intimidation or abuse" shall include verbal and non-
18 verbal actions.

19 4. "Cyberbullying" shall mean harassment or bullying as defined in
20 subdivision three of this section, where such harassment or bullying
21 occurs through any form of electronic communication.

22 5. "School" shall mean any nonpublic elementary or secondary school.

23 § 21. Bullying and harassment prohibited. 1. No student shall be
24 subjected to harassment or bullying, including cyberbullying, by other
25 students on school property or at a school function.

26 2. Upon a report of bullying, harassment, or retaliation, the princi-
27 pal or head of school, or the principal or head of school's designee,
28 must investigate promptly, communicate their findings with the victim
29 and take immediate steps and appropriate follow-up action to ensure that
30 such conduct has stopped and ensure the safety of the student or
31 students including retaliation against any individual who in good faith
32 reports such bullying or assists in the investigation.

33 3. Every school, subject to this section, shall adopt a written in
34 plain-language anti-bullying and harassment policy, which must be
35 published on the school's website or internal parent/student portal and
36 shared annually with employees, parents, and students. Such policy shall
37 include but not be limited to information on how bullying and harassment
38 is defined, how incidents will be reported, investigated, and docu-
39 mented, and an age-appropriate process for notifying the victim about
40 the final outcome of the investigation.

41 4. School employees who witness bullying or harassment, or receive an
42 oral or written report of bullying or harassment, shall promptly notify
43 the principal or head of school or the principal's or head of school's
44 designee, orally not later than one school day after such school employ-
45 ee witnesses or receives a report of bullying and harassment, and must
46 file a written report with the principal or head of school's designee
47 not later than two school days after making the initial oral report.

48 § 22. Severability and construction. The provisions of this article
49 shall be severable, and if any court of competent jurisdiction declares
50 any phrase, clause, sentence or provision of this article to be invalid,
51 or its applicability to any government agency, person or circumstance is
52 declared invalid, the remainder of this article and its relevant appli-
53 cability shall not be affected. The provisions of this article shall be
54 liberally construed to give effect to the purposes thereof.

55 § 3. This act shall take effect immediately.